

15 June 2023

Discussion regarding cross-admissibility
Directions to the Jury

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Discussion
Directions to the Jury

Thursday, 15 June 2023
(10.00 am)

(Delay in proceedings)

(10.15 am)

(In the absence of the jury)

Discussion

MR JUSTICE GOSS: Mr Johnson, Mr Myers, can I just clarify with you that the only outstanding issue is the question of the direction in relation to cross-admissibility?

MR JOHNSON: I believe so.

MR MYERS: There was one matter in addition, my Lord.

MR JUSTICE GOSS: About not being sure about the mechanism?

MR MYERS: Yes, about the degree of precision required in any given case.

MR JUSTICE GOSS: Right. Well, can I tell you what I am proposing in relation to that, and I will hear you one final time if necessary in relation to that. It's in paragraph 4. Obviously I'll send it in writing before we complete it. After the sentence "you are not detectives" in line 4:

"If you are sure that someone on the unit was deliberately harming a baby or babies, you do not have to be sure of the precise harmful act or acts, in some instances it may be more than one, nor do you have to be sure of the motive or motives for deliberately harming the baby."

In other words, I am not saying that the jury have to be sure of the precise act. Then I go on to say obviously in my directions in relation to the offences they've got to -- in a murder they've got to be sure of the causation.

MR MYERS: My Lord, we're grateful for the court reviewing it and reframing it. There's nothing further that I would add or

address the court upon. I recognise there's an impasse, which we reach, as to the defence looking for a direction, looking for degrees of certainty that your Lordship, having reflected upon it, cannot be delivered in that way, but we are grateful for the court -- or should not be delivered in that way.

MR JUSTICE GOSS: I'm saying that basically -- but when I come to sum up, I will obviously say, "This is what the prosecution allege the mechanism or mechanisms is or were", and you will obviously address the jury in relation to the fact that they should not reach the sure conclusion that there was a mechanism other than some naturally occurring event.

MR MYERS: We're grateful for your Lordship for considering that further, thank you.

MR JUSTICE GOSS: Not at all. Now we come to the major issue, and I think now the lines between you are now clearly established. I had actually last night reached the view that I could give a form of similar fact direction in very broad terms, very like my original draft, and say I would come back to this after counsels' speeches.

I then, when I saw -- I was fortified when I saw Mr Johnson that that would be an approach that he may find acceptable rather than not saying anything about it at all. I think they've got to be alerted to it otherwise it's a sort of elephant in the room.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Then I saw what you had said, Mr Myers, which would be essentially, as I understand it, giving a slightly more detailed direction than a very general direction, but then not coming back to it by way of any further direction.

MR MYERS: Well, my Lord, we deal with this in paragraphs (inaudible: coughing) of our response and I'm grateful to the court for giving the extra time required to attend (inaudible).

Our concerns were twofold. The first was that the jury do need direction upon this issue at the outset, howsoever that is dealt with. They really do because, as your Lordship describes it as the elephant in the room, it's such an obvious matter they have to have something when they listen to counsels' speeches and for guidance from your Lordship. And we agree with that.

Our second concern when we came to read the prosecution document and of principal focus, I have to say, was the amount of material it contained, and we refer to this in paragraph 14 of our response, where we object to material like this being put into a summing-up (overspeaking) prosecution argument.

MR JUSTICE GOSS: You needn't address me further in relation to that. I certainly wouldn't be doing that. That's why I proposed to come back to it after speeches.

MR MYERS: Yes, well, we countenance that, my Lord, because we do say in our response at paragraph 15, as it happens, that of course the court and your Lordship remains at liberty -- I put it this way, we put it this way:

"... to comment on the case so far as required in the second part of the summing-up in any event, but not as a direction of law and not in writing."

However, plainly, if it was legal direction that was required later then it could proceed as your Lordship suggests. But we certainly recognise that the initial direction having been given and the jury having received submissions by counsel, then of course it remains within the province of the court to return to that in whatever form your Lordship regards necessary and appropriate.

MR JUSTICE GOSS: Yes, well, can I just read out to you, and I know it's difficult when things are read, and you will get these versions in writing shortly for you to consider. These to me seem to be the two alternative ways of doing this.

One is simply to make reference to it in very general terms, tagging it on to the circumstantial direction -- and obviously I've created so many versions of this now that it becomes difficult. But in relation to the circumstantial evidence direction I would end it by saying:

"Subject to further directions as to circumstantial evidence and how you may approach the issue of coincidence after you've heard from the prosecution as to the facts and matters upon which they rely and the defence response to it, you should consider the case against and for the defendant separately."

That's one way of putting it. So that is just flagging the issue up after circumstantial evidence.

Another way is:

"I shall return to the circumstantial evidence on which the prosecution rely and the defence response to it after counsels' speeches."

And then this is the part I think you would like, something like this, but maybe not in these terms.

I'm not sure whether Mr Johnson would or would not:

"The defendant was the only member of the nursing and clinical staff who was on duty at the time that the collapses of the babies occurred and had associations with them at material times, either being the designated nurse or working in the nursery. If you are satisfied in the case of any baby that they were deliberately harmed by the defendant then you are entitled to consider how likely it is that other babies in the case, who suffered unexpected collapses, did so as a result of some unexplained or natural cause rather than as a consequence of some deliberate harmful act by someone. You are also entitled to have regard to the fact that the defendant was the only member of staff on the unit on the occasion of each event.

"If you conclude that this is unlikely then you could, if you think it right, treat the evidence of that event and any others, if any, which you find were a consequence of a deliberate harmful act as supporting evidence in the cases of other babies and that the defendant was the person responsible.

"When deciding how far, if at all, the evidence in relation to any of the cases supports the case against the defendant on any other matters you should take into account how similar, in your opinion, the allegations and the circumstances of and surrounding their collapses are.

"The defence say that there are possible causes for many of the collapses other than an intentional harmful act, that the prosecution expert cannot be relied on in terms of providing explanations for many of the collapses, and there is insufficient evidence to lead you to the conclusion that these events were related and were a consequence of any harmful act by the defendant rather than a series of unrelated collapses that in some cases ended in death."

MR JOHNSON: I can't think of a problem from our perspective.

MR JUSTICE GOSS: That then gives you free rein to make your submissions in relation to it.

MR MYERS: I'm grateful to hear it orally. I'd be grateful to see it in writing.

MR JUSTICE GOSS: You will definitely get it in writing, Mr Myers. It's just the spirit of it and you'll get the drift but it does flag up -- it's the coincident point of these similar facts and circumstances --

MR MYERS: Yes.

MR JUSTICE GOSS: -- without descending to any detail.

I have not referred to insulin, I have simply said "in relation to any event".

MR MYERS: It's something that has to be dealt with at some point, we recognise that. It's something that has to be dealt with at least to some extent before the jury hear speeches because they will need to know the issue is there.

MR JUSTICE GOSS: Absolutely.

MR MYERS: We'd be grateful to see the draft your Lordship has read. I can see, hearing your Lordship read it, why, to some extent, the court may be assisted, having heard arguments from either side, as to precisely how it could be framed. I can see that in fact in listening to that.

MR JUSTICE GOSS: Exactly.

MR MYERS: It's an organic process. Recognising that, we may wish to consider whether the first option is the preferable one. Whatever works best and fairest is what we seek and so long as the jury understand how it should be approached.

MR JUSTICE GOSS: I'll send you both versions --

MR MYERS: Thank you.

MR JUSTICE GOSS: -- for further comment. I don't think there's any point in spending more time discussing it now. It's important that you see and consider the proposals in writing.

MR MYERS: We'd be grateful, my Lord, thank you.

MR JUSTICE GOSS: That doesn't foreclose me and wouldn't foreclose me from coming back to this direction when I am reminding them of the evidence obviously because I'm going to have to rehearse both sides' arguments.

MR MYERS: It certainly would have the benefit, I'm not sure the prosecution are in the same position, that both parties would have a clearer idea or a clear idea of the way the jury will be directed on this and then submissions can take that properly into account.

Certainly the second version allows us to do that the better, but we would be grateful to look at the content of the detail.

MR JUSTICE GOSS: Because it's clear that when giving directions as to both circumstantial evidence and a similar fact or a

coincidence direction, the jury have to be told what the evidence is and what the arguments are, they can't just be abstract. So anyway, I'll send both of these to you and you can consider them.

MR JOHNSON: That was the very reason I descended into the detail I did in the --

MR JUSTICE GOSS: Exactly.

MR JOHNSON: (Inaudible: no microphone) to the jury or not is a different point. Anyway.

MR JUSTICE GOSS: I'll get those to you, I hope by quarter to 11. I've got slight computer problems at the moment.

I will get them to you. Then you can consider them and indicate to me when you want to reconvene. Frankly, as I've indicated, as long as I am able to leave the building by 2.30, any time up to 2 o'clock is going to be fine because it's only going to take me maximum of half an hour to deliver these directions.

MR JOHNSON: The point we made in writing, my Lord, is that because, as Mr Myers has just repeated in effect, this is an organic process because the summing-up hasn't finished, therefore the directions on which the jury will be making their decision haven't finished.

MR JUSTICE GOSS: Exactly.

MR JOHNSON: As long as we know the general parameters before speeches and the fact that a direction is going to be given, I can certainly work around that. Even if Mr Myers can't, it still gives him most of next week to think about any submissions he wants and I don't believe actually that that would harm the prosecution in any way if he wanted to do that.

MR JUSTICE GOSS: All right. I'll send them to both of you.

You can each consider them separately and then, if you want to, collectively between the two of you and see whether there's any consensus or sufficient consensus to formulate an agreed document. All right? Thank you very much indeed.

So I can't say when the defendant will be required back in court, but you'll receive notice in the usual way. Thank you very much.

(10.27 am)

(Adjournment)

(12.00 pm)

MR JUSTICE GOSS: There's been a lot of toing and froing of versions. I hope that the latest one you have received, which will be very recent, because I have been having computer problems -- Mr Murphy's had to help me, we're sending away for new parts -- but is that agreed?

MR JOHNSON: I think it is. There's one typo that remains, which --

MR JUSTICE GOSS: Can you tell me what it is, please?

MR JOHNSON: I think it's in paragraph 4.

MR JUSTICE GOSS: What I'll do is I'll correct it and then print off this version, then it'll have to be photocopied anyway.

MR JOHNSON: Paragraph 3, so page 2. Counting from the bottom of paragraph 3 --

MR JUSTICE GOSS: Sorry, hang on a second. Page 2.

MR JOHNSON: Paragraph 3, seven lines up from the bottom of paragraph 3: "Witnesses falls", it says, but it should be "fall".

MR JUSTICE GOSS: Right, thank you. Page 3?

MR JOHNSON: No, paragraph 3, page 2.

MR JUSTICE GOSS: "Witnesses fall into the same category", yes. Thank you.

I should have mentioned earlier this morning that I've identified the [Baby N] issue specifically and, I hope, addressed that.

MR JOHNSON: Yes, we noticed, thank you.

MR JUSTICE GOSS: I hope it makes sense so that in that case they should treat it as contested and they decide where the truth lies if they deem it necessary.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Good.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: I'm very grateful to you. I'm sorry it's been a lot of toing and froing. What I will do, I will rise, because it'll take time to get the jury up. The usher will kindly go and get the jury. How long will it take to photocopy this for the jury and Mr Pilling?

I promised him a copy. How many copies do you want, Mr Pilling? Should I be generous and say five? Right.

Five copies. So five plus 12. Do you want paper copies or not?

MR JOHNSON: No, thank you.

MR MYERS: I'd be grateful if there's one going spare.

MR JUSTICE GOSS: There will be. It's not as though it's a voluminous copy.

MR MYERS: Just one for me, thank you.

MR JUSTICE GOSS: Do 20.

MR JOHNSON: I'm sorry, in Mr Pilling's version, if it's going to be a hard copy, probably the names need to be redacted.

MR JUSTICE GOSS: Yes, they will be. They will have to be redacted. So I'm afraid you won't get it immediately.

We'll do 15 now, then we'll do some redacted ones for Mr Pilling as soon as possible. Unless you're prepared -- you just have one copy and I'll then give you the five copies in due course. If I give you one copy for while you're in court and then you hand it back when you leave court.

MR MYERS: May I have a copy for the defendant, Ms Letby, as well, please?

MR JUSTICE GOSS: Yes.

All right, thank you very much. This, as I say, shouldn't take more than 10 minutes. If the jury is brought up, I'm hoping we'll sit at about quarter past, so I'm afraid there will be about a 15-minute break now.

I'm sorry about the delay in my coming into court and the inconvenience that will have caused.

MR MYERS: We're grateful for the opportunity to deal with the directions as we have done, my Lord. Thank you.

MR JUSTICE GOSS: Thank you very much.

(12.03 pm)

(A short break)

(12.44 pm)

MR JUSTICE GOSS: Mr Johnson, Mr Myers, can I confirm with you that you are both content with this final version?

MR JOHNSON: Yes.

MR MYERS: Yes, thank you.

MR JUSTICE GOSS: As you did say, Mr Johnson, it's not the final word. If matters have to be revisited they can be revisited in due course. There is a copy -- I don't know whether it's been photocopied yet, but there is a redacted version that I prepared just eliminating names. Has it been photocopied? Not yet. You can have it, Mr Pilling. I don't know how it can be done. Staff shortages are such that we can't summon someone to come and do it. You might have to wait until I have finished it. All right? Thank you.

(In the presence of the jury)

Directions to the Jury

MR JUSTICE GOSS: I add to the litany of apologies for you being kept waiting. I'm very sorry. We had technological issues in relation to the photocopier.

There aren't many photocopiers that work in this building and eventually we got it, and I think the consequence is that the paper is not of very good quality.

But the document is now prepared and is available for distribution to you. What we're going to do is -- I shall speak to this, I will go through it with you.

As with all documents that you've been given during the course of this trial, this is your personal copy to keep, to write on, mark, highlight, do whatever you want with it. But it sets out, I hope clearly, for you my first set of directions of law and it will be a document to which, I have no doubt, you will be referring when you retire to consider your verdicts in this case because I set out routes to verdict in it -- or verdicts.

So this is, as I have indicated to you before, the first part of my summing-up. It's a short part. It will take no longer half an

hour to deliver. That will then be as far as we will go today with this case.

You will have another early day because tomorrow we are not sitting and on Monday morning Mr Johnson will begin his address to you on behalf of the prosecution. So that's what's going to happen today.

This is quite dense, so I will go through it quite slowly and ensure that you are following and understanding what is written in this document. All right? So if you -- take it up and follow it as we go through it, please.

It is the first set of directions of law, Directions of Law 1.

Lucy Letby, to whom I shall refer as the defendant, is accused of 22 offences, being seven offences of murder and 15 offences of attempted murder, all relating to very young babies.

The prosecution case is that between June 2015 and July 2016, during the course of her work in the neonatal unit at the Countess of Chester Hospital in Chester, to which I shall refer as "the unit", as a neonatal nurse with special training, she deliberately harmed a total of 17 babies, intending to kill them; seven of the babies died.

She is alleged to have seriously harmed and killed the babies in various ways, including by injecting air into the venous system, by administering air and/or milk into the stomach via the nasogastric tube, by adding insulin as a poison to the intravenous feeds, by interfering with breathing tubes, and latterly by using force to the abdomen.

Some of the babies, they allege, were subjected to repeated attempts to kill them. You have to consider the cases of each of the 17 babies and return verdicts on each charge on the indictment to which they relate and, subject to what I say in relation to circumstantial evidence, you should consider the evidence in relation to each charge separately.

The law is my responsibility and you will receive all my directions of law in writing. This is the first set of directions. You must accept and apply my directions of law in reaching your verdicts. You and you alone are the judges of the facts and the conclusions to be drawn from the facts. You decide the case on and only on all the evidence placed before you.

There will be no more and you must not speculate about what other evidence there might have been.

You reach your verdicts on each of the counts by applying my directions of law to the facts established by the evidence and the conclusions you draw from them and, subject to the direction below relating to circumstantial evidence and the unlikelihood of coincidence, you should consider the case against and for the defendant on each count separately.

As I said at the very beginning of the trial, you must not approach the case with any preconceived views and you must cast out of your decision-making process any response or approach to the case based on emotion or any feelings of sympathy or antipathy you may have.

It is instinctive for anyone to react with horror to any allegation of deliberately harming, let alone killing, a child, even more so a vulnerable premature baby.

You will naturally feel sympathy for all the parents in this case, particularly those who have lost a child and the harrowing circumstances of their deaths.

You must, however, judge the case on all the evidence in the case in a fair, calm, objective and analytical way, applying your knowledge of human behaviour, how people act and react, using your common sense and collective good judgement in your assessment of the evidence and the conclusions to be drawn from it.

The evidence has taken a number of forms. There is direct evidence from witnesses called before you or read to you. There is also a large amount of documentary evidence and digital material, as well as agreed facts, which you have in writing. Facts that are agreed means that you do not have to decide the reliability of any of those facts. The evidence of witnesses that was read to you as agreed meant that the defence did not want to challenge anything the witness said.

In the case of [Baby N], the evidence of his father, [Father of Baby N], and the linked evidence of his mother, [Mother of Baby N], was read to you as agreed when in fact it should not have been read as agreed as it was disputed by the defendant. In that instance and in that instance alone in relation to evidence that was read as agreed, the witnesses fall into the same category as the disputed evidence of a witness who gave oral evidence.

Where there are disputes in the evidence and you consider it important or necessary to resolve a conflict in the evidence between a witness and the defendant, you decide who you find truthful and reliable in relation to the matter in issue and who you do not.

In the case of any witness you may accept all of what they say as truthful and reliable, you may accept some of what a witness says as truthful and reliable but not all, or you may reject all of what a witness says.

It is entirely a matter for you.

What you do not have to do is resolve every conflict in the evidence and be sure about every point that has been raised or try to determine exactly what happened.

It would, you may think, be a remarkable and exceptional case in which a jury could say, "We know everything about what happened in any case and why". You are not detectives.

If you are sure that someone on the unit was deliberately harming a baby or babies you do not have to be sure of the precise harmful act or acts; in some instances there may have been more than one. To find the defendant guilty, however, you must be sure that she deliberately did some harmful act to the baby the subject of the count on the indictment and the act or acts were accompanied by the intent and, in the case of murder, was causative of death, as set out in the section below "Directions of law relating to the offences".

So that's highlighting something that's coming up later in the directions.

Nor do you have to be sure of the motive or motives for deliberately harming any baby. Motives for criminal behaviour are sometimes complex and not always clear.

You only have to make decisions on those matters that will enable you to say whether the defendant is guilty or not of the particular charge you are considering.

Any decision you do make must be based on evidence and not speculation.

What counsel say to you is not evidence. They are advocates, not witnesses. Their role is to present their respective cases, to question witnesses and to advance arguments on the evidence for you to consider.

So where a witness agrees with a proposition in a question then it is the reply of the witness that becomes the witness's evidence. Where a witness does not accept the factual proposition in the question then the question itself is not evidence.

Counsel are quite entitled to and do, of course, invite you to reach certain conclusions on the evidence.

They cannot give evidence of what did or did not happen, they can only make submissions on the evidence and invite you to conclusions on it.

As the judges of the facts, you and you alone decide the significance of any evidence that is agreed or you find to be truthful and reliable and the weight to be attached to it and its importance in deciding your verdicts and the conclusions you draw from all the evidence.

In addition to directing you as to the law that you must apply, I also have the responsibility of summarising the evidence in the case. There is a great deal of it. I shall try to assist you by reminding you of the background to and context of the events, identifying the essential issues, and then reminding you in some, but not exhaustive detail, of the evidence in relation to each of the 22 counts in the order in which they occurred.

I shall not refer to everything, that would be unhelpful and immensely time-consuming, but I shall make reference to the main documents. You are free to note anything about which I remind you or any reference I make. However, remember that it is for you to decide what is relevant and the important evidence and what is not and the conclusions to be drawn from it, so if I fail to mention something that you consider important, take that evidence into account. Conversely, if I refer to or appear to emphasise something you consider unimportant, attach no significance to the fact that I have referred to it.

You'll hear submissions on behalf of both the prosecution and the defence. I shall refer to their arguments, but I will not rehearse every argument or all the detail of them.

Circumstantial evidence and the unlikelihood of coincidence. This is a case in which the prosecution substantially, but not wholly, rely on what is sometimes referred to as circumstantial evidence. That is pieces of evidence relating to different facts, none of which on their own directly prove that the defendant is guilty but which, taken together, lead you, they say, to the inevitable and irresistible conclusion that the only explanation for them is that the defendant is guilty of the offences upon which she is charged.

Circumstantial evidence gains its force from a consideration of all the circumstances. You do not examine each piece of evidence separately and find that, considered on its own, that is not enough and move on to the next piece of evidence, which again, on its own, is not sufficient.

You must first consider in relation to those facts and matters which are not admitted which of them have been proved so that you are sure of them, taking into account the competing arguments in relation to the proper interpretation of those facts. You then decide whether the combination and cumulative effect of all the admitted and proved facts and circumstances lead you to the inescapable conclusion that the defendant committed the offence or offences you are considering.

You must be alert to distinguish between mere speculation and properly reasoned conclusions and inferences based on evidence. Speculation amounts to no more than guessing or devising theories of your own, which are not based on the evidence, which plainly is something you must not do.

I shall return to the circumstantial evidence on which the prosecution rely and the defence response to it after counsels' speeches.

The defendant was the only member of the nursing and clinical staff who was on duty each time that the collapses of all the babies occurred and had associations with them at material times, either being the designated nurse or working in the unit. If you are satisfied so that you are sure in the case of any baby that they were deliberately harmed by the defendant then you are entitled to consider how likely it is that other babies in the case who suffered unexpected collapses did so as a result of some unexplained or natural cause rather than as a consequence of some deliberate harmful act by someone.

If you conclude that this is unlikely then you could, if you think it right, treat the evidence of that event and any others which you find were a consequence of a deliberate harmful act as supporting evidence in the cases of other babies and that the defendant was the person responsible.

When deciding how far, if at all, the evidence in relation to any of the cases supports the case against the defendant on any other or others, you should take into account how similar or dissimilar, in your opinion, the allegations and the circumstances of and surrounding their collapses are.

The defence say that there are possible causes for many of the collapses other than an intentional harmful act, that the prosecution expert evidence cannot be relied on in terms of providing explanations for many of the collapses and that there is insufficient evidence to lead you to the conclusion that these events were related and were a consequence of any harmful act by the defendant rather than a series of unrelated collapses that in some cases ended in death.

So I move on now to the directions of law relating to the offences. There are, as you know, two types of alleged offence: murder and attempted murder.

It is for the prosecution to prove the defendant's guilt of any offence by making you sure of her guilt.

She has no burden of proving her innocence. If you are not sure she is guilty of any offence your verdict should be not guilty. If you are sure of her guilt, your verdict should be guilty.

Murder, which is charged in counts 1, 3, 4, 5, 12, 20 and 21. The defendant is guilty of murder if by an unlawful act or acts she caused the death of a child with the intention of killing or causing some really serious harm to that child.

I address each of those three elements that are numbered there. Unlawful act or acts. An unlawful act in the circumstances of this case is one that was a deliberate harmful act that was intentionally clinically inappropriate. The defence case is that the defendant did nothing to harm any of the children.

Causing the death. Such act or acts and their consequences do not have to be the sole cause of the child's death but must be a substantial cause of their death in the sense that it was more than a minimal cause. So on the question of causation you must be sure that the defendant deliberately did something to the child that was more than a minimal cause of the child's death. The children were all premature and vulnerable.

Some had mild respiratory distress syndrome of prematurity and some had specific health issues. There were also a few cases of delays in the administration of appropriate medication or other clinical failings. Some of the causes of death were unascertained.

In the case of each child, without necessarily having to determine the precise cause or causes of their death, and for which no natural or known cause was said to be apparent at the time, you must be sure that the act or acts of the defendant, whatever they were, caused the child's death in that it was more than a minimal cause. The defendant says that she did nothing inappropriate, let alone harmful, to any child. Her case is that the sudden collapses and deaths were or may have been from natural causes or for some unascertained reason or from some failure to provide appropriate care and were not attributable to any deliberate harmful act by her.

If you are sure that she did cause a child's death by some deliberate harmful act, you must then consider what her intent

was at the time of the act or acts. In law, an intention to kill does not have to be proved; an intention to cause some really serious harm will suffice. However, the prosecution case is that the intention in the case of each of the 17 children in this case was to kill. In some cases she was successful, in others she was not. And those, of course, are the charges of attempted murder. The defendant's case is that she did nothing harmful and never intended to cause any harm to any of them.

Intention. You decide a person's intention by considering the nature of the act or acts that caused the collapse and death of the child in question, all the circumstances of and surrounding acts, including the child's relative vulnerability to harm and the actual or potential consequences of any act or acts, both in relation to the child in question and in the context of the sequence of such events as they occurred and anything the defendant said or did, both before, during and after the events.

If you are sure the defendant deliberately did something or things that caused the death of the child whose case you are considering, intending to kill or at least to cause some really serious harm to that child, then she is guilty of the murder of that child. If you are not sure of both those elements then she is not guilty.

So on each count of murder you should ask yourselves the following question: (1), are we sure that the defendant did some harmful act or acts to the child who died? If yes, you go to question 2. If no, your verdict should be not guilty.

(2), are we sure that the act or acts of the defendant was a substantial cause of the death of that child in that it was more than a minimal cause? If yes, go to question 3. If no, your verdict on that count should be not guilty.

(3), are we sure that when she did the act or acts that caused the death of the child she intended to kill or cause some really serious harm to that child? If your answer is yes, your verdict on that count should be guilty. If your answer is no, your verdict on that count should be not guilty.

I hope that's relatively simple in terms of the approach that you must take in relation to each of these counts and the sequential questions you must answer and you understand you've got to go through them in sequence because one leads on potentially to the other.

Attempted murder, which is the remaining counts on the indictment, which I have numbered there for you.

The defendant is guilty of attempted murder if, with the intention of unlawfully killing a child, she did an act or acts which was or were more than merely preparatory to killing that child.

Unlike the offence of murder, an intention to cause really serious harm is not sufficient; the proved intention must be to kill. The clue lies in the description of the offence: attempted murder, attempted killing. So the intention must be to kill.

The prosecution allege that in each of the cases of the babies who collapsed or suffered events but survived, the defendant deliberately did an act or acts to harm them, which was more than merely preparatory to killing the child and which in fact harmed them and, although they did not die, it was her intention that the child should die. The defendant's case is that she had no intention to harm, let alone kill, a child and she did nothing to harm any child.

So on each count of attempted murder ask yourselves the following questions: (1), are we sure that the defendant intended to kill the child? If your answer is yes, you go to question 2. If your answer is no, your verdict should be not guilty.

(2), are we sure that the defendant did an act or acts that was or were more than merely preparatory to killing the child? If your answer is yes, your verdict should be guilty. If your answer is no, your verdict should be not guilty.

Then finally, verdicts. As you may know, the law permits me in certain circumstances to accept a verdict that is not the verdict of you all. Those circumstances have not as yet arisen. So when you do come to retire, which will obviously be some time yet, but when you do retire I must ask you to reach verdicts on each of the counts on which each one of you is agreed, guilty or not guilty. In other words, unanimous verdicts.

Should the time come when it is possible for me to accept a majority verdict I shall call you back into court and give you a further direction. You have that in writing. It's a very early stage. It's usually said at the very end of a summing-up, but I thought it was important to put it in writing immediately following the questions you must ask yourselves in relation to each of the counts. And of course, you must each answer in the same way before you reach a unanimous verdict. All right?

As I said, there's a lot of material in there, but I hope it makes sense to you and as I have said, and will say yet again, you must follow the directions of law that are set out there and indeed the further directions I'll give you when I resume my

summing-up in due course. They'll be in writing as a separate document, "Directions of Law 2" they'll be. All right?

Not very many of them and they're not very long, so don't worry.

So that's it for today. Please remember your responsibilities as jurors: it is vitally important you do not speak to anyone or communicate with anyone in any way about anything to do with this case or conduct any research about anyone or anything to do with this case.

Keep your thoughts to yourselves. When you're all together you may talk. I'm not encouraging you to talk about the case, you are not forbidden from talking about the case, you will have time to do that when you're all together, having heard the arguments and the remainder of my summing-up and my resumé of the evidence.

Thank you very much indeed. 10.30 on Monday morning.

(In the absence of the jury)

MR JUSTICE GOSS: The answer is no. Thank you very much.

Mr Pilling, the photocopying will now be done so you can have a paper redacted version if you would like one.

The only thing is, the three names have been removed.

MR PILLING: Which are covered anyway.

MR JUSTICE GOSS: They're covered anyway, but it's an abundance of caution, just in case a copy of this document goes astray. I'm not suggesting they would in your hands, but...

Right. I'm just enquiring as to whether it'll be cooler next week because it's pretty borderline now.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Right.

(1.17 pm)

(The court adjourned until 10.30 am on Monday, 19 June 2023)